

25AVCV00556 25AVCV00556

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25AVCV00556 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

REY ESCAMILLA; and THELMA ESCAMILLA,

Plaintiffs,

v.

GENERAL MOTORS, LLC; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00556

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 18, 2026

Dept. A-14

Judge William H. Forman

I. Background

Defendant General Motors, LLC (Defendant) moves the Court for an order for compliance requiring Plaintiff Rey Escamilla (Rey) to appear and comply with his initial deposition.

On April 29, 2025, Plaintiffs Rey and Thelma Escamilla (Thelma) (together Plaintiffs) filed a complaint against Defendant, asserting causes of action for (1) Violation of Subdivision (d) of Civil Code section 1793.2, (2) Violation of Subdivision (b) of Civil Code section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2, (4) Breach of the Implied Warranty of Merchantability Pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) Fraudulent Inducement – Concealment.

Plaintiffs allege that on March 27, 2022, Plaintiffs entered into a warranty contract with Defendant regarding a 2021 GMC Sierra 1500, and Defendant provided various warranties, including a bumper-to-bumper warranty, powertrain warranty, and emission warranty. (Compl., ¶¶ 6-7.) Plaintiffs claim that various defects and nonconformities to warranty manifested within the applicable express warranty period, that Defendant had a duty to promptly offer to repurchase or replace the Vehicle after a reasonable number of repair attempts, and that Defendant has failed to do so. (Compl., ¶¶ 14-15.) Therefore, Plaintiffs assert that Defendant is in violation of the Song-Beverly Consumer Warranty Act (Song-Beverly Act). (Compl., ¶ 14.)

On May 20, 2026, Defendant filed the present motion for compliance.

On August 5, 2026, Plaintiff Thelma filed an opposition. The Court assumes this is a clerical/typographical error, as the only deposition at issue is the deposition of Plaintiff Rey, and the Plaintiff's opposition repeatedly refers to Rey's deposition.

On August 10, 2026, Defendant filed a reply.

II. Legal Standard

Standard for Motion to Compel Compliance – Code of Civil Procedure section 871.26, subdivision (c) provides that within 120 days after the filing of the answer or other responsive pleading, all parties to a civil action for restitution or replacement of a motor vehicle have the right to conduct depositions of (1) the plaintiff, and (2) the person most qualified to testify on the defendant's behalf. Code of Civil Procedure section 871.26, subdivision (j) requires the Court to sanction a plaintiff's attorney \$1,500.00 for failure to comply with the deposition provisions unless the plaintiff's attorney shows good cause.

III. Discussion

Application – Defendant moves to compel Plaintiff's attendance at deposition and testimony pursuant to Civil Code section 871.26 and \$1,500 in monetary sanctions against Plaintiff and his counsel, Strategic Legal Practices (SLP).

On July 29, 2025, along with Defendant's first responsive pleading, Defendant served a notice of deposition for Plaintiff Rey, noticing the deposition for October 2, 2025, and a meet and confer letter to Plaintiff's counsel. (Motion, p. 6:13-24, 7:1-2; Lasater Decl., ¶ 5, Ex. B.) Rey objected to the October 2nd date, and the deposition was reset to an agreed upon date, though it is unclear from the papers on what grounds Rey objected to the initial deposition notice. (Reply, p. 2:11-13.) On November 20, 2025, Plaintiff's counsel objected to the notice of deposition on the grounds that Plaintiff or his counsel were unavailable. (Motion, p. 7:3-8; Lasater Decl., ¶ 6, Ex. C.) On November 7, 2025, Defendant served an Amended Notice of Deposition for Plaintiffs to appear on November 26, 2025. (Motion, p. 7:9-10; Lasater Decl., ¶ 7, Ex. D.) Defense counsel followed up via email to Plaintiff's counsel requesting dates for Plaintiff's availability for deposition. (Motion, p. 7:11-12; Lasater Decl., ¶ 8, Ex. E.)

On May 11, 2026, Plaintiff's counsel provided three dates to Defense counsel between September 1 and 30, 2026. (Motion, p. 7:13-15; Lasater Decl., ¶ 9, Ex. F.) Defendant requested earlier dates, as the deadline for appearance passed in November of 2025, Plaintiff again responded by offering three unconfirmed dates in September of 2026. On May 20, 2026, Defendant filed the present motion for compliance and reiterated its desire to conduct the depositions prior to September, but agreed to hold the dates. (Motion, p. 7:15-22; Lasater Decl., ¶¶ 9-10, Ex. F, G.)

Neither party disputes that this action, and the Parties' depositions, are governed by Section 871.26. Defendant argues the motion is warranted and sanctions mandatory for Plaintiff Rey's failure to make himself available within the 120 day deadline despite repeated efforts to meet and confer and secure Rey's deposition. (Motion, p. 15:9-18.) Defendant also asserts that due to Rey's refusal to abide by the discovery deadlines set forth in Section 871.26, Defendant is unable to adequately prepare the Code-mandated mediation, which is to occur 150 days after Defendant filed its responsive pleading. (Lasater Decl., ¶ 12; Code Civ. Proc., § 871.26, subds. (c) – (d).)

In opposition, Plaintiff argues that the present motion is now moot, as on June 5, 2026, the Parties reached an agreement that Rey will sit for deposition on September 28, 2026 at 11:00 a.m. with a Spanish language interpreter to be present, and on June 8, 2026, Defendant served a Second Amended Notice of Deposition of Plaintiff Rey, set for September 28th. (Opp., p. 3:3-20; Smith Decl., ¶¶ 5-8, Ex. A-C.) Plaintiff also argues that monetary sanctions are not warranted, as Plaintiffs have shown good cause, being that Plaintiffs have offered deposition dates, coordinated with Defendant to reach a firm, agreed-upon date for Plaintiffs' depositions, and Defendant has served notices of deposition affirmatively agreeing to the date set. (Opp., p. 4:19-27.) Plaintiff further argues that Defendant cannot show any prejudice. (Opp., p. 5:3.)

On reply, Defendant argues the motion is not moot and that monetary sanctions are mandatory, as Plaintiff Rey has yet to sit for his deposition, and that on the date of filing of the present motion, Plaintiff Rey still had not been produced for deposition, rendering monetary sanctions mandatory. (Reply, p. 1:17-27.) Defendant also argues that Plaintiff has failed to show good cause to avoid the imposition of sanctions, as the scheduling history establishes Plaintiff's lack of urgency in complying with the statutory requirements of being available for deposition. (Reply, p. 2:7-10.)

The Court agrees with Defendant that the motion is not moot, that monetary sanctions are mandatory, and that Plaintiff's counsel has failed to establish any good cause for non-imposition of sanctions under these circumstances. While it appears the Parties have agreed to a deposition date of September 28, 2026, the Court notes that it was only after Defendant made the present motion that the Parties set Rey's deposition. Any agreement made after the filing of the present motion is irrelevant as it offers no justification for the failure to appear within the 120-day statutory deadline and does not render the present motion moot. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408 [to accept that a court has no discretion to hear and rule on a motion to compel discovery after untimely responses are provided 'would remove an important incentive for parties to respond to discovery in a timely fashion']; see also *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [echoing Sinaiko's reasoning in the context of motions to compel further responses]; Cal. Rules of Court, rule 3.1348(a) ["The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed."].)

Furthermore, the Parties' June 2026 agreement to Rey's deposition date does not establish good cause not to impose sanctions for Plaintiff's counsel's failure to produce their client for deposition within the mandatory 120-day deadline. Defendant is also correct that it is under no obligation to establish any prejudice whatsoever in making the present motion, and based upon the moving, opposition, and reply papers and the accompanying exhibits, Rey and his counsel unequivocally failed to comply with the statutory discovery deadlines and, without reason, have extended the date for deposition to almost a year from the deadline. While the Court notes that trial is not yet set in this case, Defendant had a right to depose Rey within 120 days of the filing of its demurrer on July 29, 2025, and Rey and his counsel are under an obligation to comply with the mandatory statutory discovery deadlines. Here, the deadline for Rey to submit to a deposition was November 26, 2025. No reason has been provided for Rey's failure to appear by this date.

Accordingly, Defendant's motion for compliance and request for sanctions are GRANTED. Rey is ordered to appear for deposition on September 28, 2026 at 11:00 a.m. pursuant to the Parties' agreement. Monetary sanctions in the amount of \$1,500 are awarded against SLP, and SLP shall tender the full amount to Defendant's counsel within 30 days of this Order.

IV. Conclusion

Defendant General Motors, LLC's Motion for Compliance and Request for Sanctions is GRANTED.

Plaintiff shall appear and sit for deposition on September 28, 2026 at 11:00 a.m.

Plaintiff's counsel Strategic Legal Practices is to pay the full \$1,500 to Defendant's counsel Mortenson Taggart Adams LLP within 30 days of this Order.